



File No.: EXP202211097

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 18, 2022, a complaint was filed with entry registration number REGAGE22e00046580309 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

“(…) that the complained party has installed a video surveillance camera in their residence that is oriented outward, outside the scope of their residence, without prior authorization for this (…)”

A video and images are provided showing the location of the camera (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on October 21, 2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On November 14, 2022, a written response was received from the complained party regarding the facts presented, “denying the capture of the neighboring space,” as well as stating that they have informative signs indicating that it is a video-surveilled area, with the system contracted with Prosegur and the images being stored for a period of 7 days.

FOURTH: On January 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

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LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

On October 18, 2022, a complaint was received through which the following was conveyed: “installed indoor video surveillance cameras, manipulated them, and relocated them to the windows of their residence (…)”—page no. 1—.

The complained party, on November 16, 2022, responded to the request from this agency stating that they have an informative sign indicating that it is a video-surveilled area, as well as that the exterior camera is oriented “focusing on the car and the livestock in front.”

The complaining party has not provided any evidence to prove that a “processing of their data” is taking place outside the cases permitted by law; the video evidence provided is made by the

complainant themselves regarding the complained parties, which we understand is from their property. It has also not been proven, as stated in their complaint, that the camera has a 360° rotation capability, as there is no frame from the complainant's property (e.g., windows, patio, access door to their residence, etc.) that substantiates such a claim.

It has been established that there is a poor neighborly relationship between the parties, which has led to various legal actions, some of which are pending, which would justify the possibility of obtaining audio of what they say to each other in the outdoor space of the neighboring residences in the face of any criminal actions by either party (e.g., insults or threats).

In any case, the facts presented denote issues typical of poor neighborly relations, which should, if necessary, be referred to the State Security Forces and Corps (e.g., local Civil Guard as a guideline).

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According to Article 7 of LO 1/1982, of May 5, on the civil protection of the right to honor, personal and family privacy, and one's own image.

“Considered as unlawful intrusions within the protection scope defined by Article Two of this Law:

1. The placement of any listening devices, filming equipment, optical devices, or any other means capable of recording or reproducing the private life of individuals in any location.

From the perspective of the right to privacy, every person has the right to enjoy reasonable tranquility, as the content of fundamental rights “undoubtedly includes the reasonable appearance that these are not in constant danger of being violated.”

The hypothetical capture of ambient sound does not take place in a space reserved for the strictest intimacy of the claimant, such as their private home, but rather, in this case, in the exterior part of the property, without specifying which conversations have been obtained or the use that has been made of them, beyond mere assumptions about the possibility that it may capture discussions between both parties from their part of the private property.

Article 22 of the LOPDGGD (LO 3/2018, December 5) states:

“Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.”

Webcam-type devices that are connected to nearby computers must also be oriented exclusively towards private areas, avoiding their use for the purpose of disturbing or intimidating neighboring residents, as reckless use of them may also lead to consequences within the framework of data protection.

Finally, situations of “excessive” observation or permanent impact on neighboring private spaces should be avoided (e.g., Judgment of the First Chamber of the Supreme Court of November 7, 2019), in such a way that the devices installed by the defendant should not intimidate the neighboring resident, as they could find themselves in a situation of excessive impact on their privacy, with legal consequences in the appropriate judicial instances.

III

The principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails:

“that the sanction is based on acts or incriminating evidence of the reproached conduct; that the

burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal.”

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

In accordance with the above, after analyzing the allegations of both parties, it has not been established that the facts presented substantiate the commission of an administrative infraction in the matter at hand, which justifies the filing of the present procedure.

The parties are reminded of the significance of the rights at stake, and they should avoid the instrumentalization of this agency in matters related to neighborhood disputes, being advisable to redirect them to the minimum rules of good neighborly coexistence or to resolve these in the appropriate judicial instances.

All of this is without prejudice to the fact that if the actions of the Security Forces and Corps credibly demonstrate illegal conduct in the area of data protection, this may be referred to this Agency for a reassessment of the facts.

In accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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